

25STCV24968 25STCV24968

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MOTION FOR LEAVE TO AMEND COMPLAINT

The Court tenders the following decision

in the matter Francisco Guevara v. Servicon Systems, Inc., et al., Los Angeles County Superior Court case number 25STCV24968, set for hearing on September 9, 2026. Francisco Guevara (Plaintiff) moves for leave to file a first amended complaint (FAC) in this matter. Servicon Systems, Inc. (Defendant) opposes the motion. The motion is granted.

A.

Legal Standard

The court may, in its discretion and after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading, including adding or striking out the name of any party, or correcting a mistake in the name of a party, or a mistake in any other respect. (Code Civ. Proc., § 473, subd. (a)(1).) California courts are required to permit liberal amendment of pleadings in the interest of justice between the parties to an action. (Code Civ. Proc., § 473, subd. (a); Dieckmann v. Superior Court (1985) 175 Cal.App.3d 345, 352.) “Public policy dictates that leave to amend be liberally granted.” (Centex Homes v. St. Paul Fire & Marine Insurance Co. (2015) 237 Cal.App.4th 23, 32 (Centex Homes).)

Under California Rules of Court, rule 3.1324, a motion to amend a pleading before trial must include the following content: (1) a copy of the proposed amendment or amended pleading; (2) a statement regarding what allegations in the previous pleading are proposed to be deleted if any, and where they are located; and (3) a statement

regarding what allegations are proposed to be added to the previous pleading, if any, and where. Subdivision (b) of rule 3.1324 additionally requires that the motion be accompanied by a separate, supporting declaration, specifying the following: (1) the amendment's effect; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier.

B. Discussion

Plaintiff moves for an order granting him leave to file an FAC clarifying and expanding the factual allegations supporting his existing claims and adding additional wage-and-hour related causes of action. (Guzman Decl. ¶ 9, Ex. B.) Plaintiff has complied with the procedural requirements of rule 3.1324(a) by providing a copy of the proposed amended pleading (*ibid.*) and a statement regarding the allegations to be added. Plaintiff has also satisfied the requirements of 3.1324(b). He has offered a declaration speaking to the proposed amendment's effect, why it is necessary and proper, and why it was not proposed earlier, namely that Plaintiff initially sought a stipulation to amend his complaint in February 2026. (*Id.* ¶¶ 8, 10–11.) Thus, Plaintiff's motion is procedurally proper.

Defendant argues that Plaintiff's motion is not in compliance with the Rules of Court because he fails to state what allegations are being added or deleted. However, Plaintiff specifically identifies all the proposed changes on pages 8 and 9 of his motion. Defendant additionally argues that the proposed amendment does not relate to the facts just discovered. But Plaintiff's counsel asserts otherwise, testifying that at the beginning of 2026 Plaintiff received additional information from Defendant relevant to the nature and scope of his claims. (*Id.* ¶ 11.) After further investigation, Plaintiff determined that the present amendment was necessary. (*ibid.*) Such testimony is sufficient to establish that the new allegations are related to those recently discovered facts. Accordingly, Plaintiff's motion is granted.

C.

Conclusion

The Court grants the motion.